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Case Number: 26STCV21417 Hearing Date: September 23, 2026 Dept: 509

Angela Terry v. Mayfair Lofts, LLC, et al.

PLAINTIFF'S MOTION FOR AN ORDER RELIEVING PLAINTIFF FROM GOVERNMENT ENTITY CLAIM FILING REQUIREMENTS

MOVING PARTY: Plaintiff Angela Terry

RESPONDING PARTY(S): Defendant City of Los Angeles

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

This is a personal injury action. On March 3, 2025, Plaintiff Angela Terry (Plaintiff) alleges she was injured while riding an elevator at 1256 W. 7th St., Los Angeles, CA 90017. Plaintiff alleges defendants Mayfair Lofts, LLC, and City of Los Angeles (The City) failed inspect, repair, or maintain the premises.

Plaintiff filed this instant motion to for an order relieving plaintiff from government entity claim filing requirements pursuant to Government Code, section 946.6. The City opposed one day late.

On September 9, 2026, this motion originally came to hearing. At the hearing, Plaintiff requested a continuance to file a reply to the late opposition. The Court allowed Plaintiff to file a reply which could include response to the original Tentative Ruling, due by 4:00 PM on September 16, 2026. On September 16, 2026, at 3:36pm, Plaintiff filed a reply.

The Court now considers the entirety of the record including Plaintiff's reply.

TENTATIVE RULING:

Plaintiff's Motion for Relief is to be ARGUED at tomorrow's hearing.

DISCUSSION:

Motion for Relief

I. Legal Standard

“[N]o suit for money or damages may be brought against a public entity on a cause of action for which a claim is required to be presented. . . until a written claim therefor has been presented to the public entity and has been acted upon. . . or has been deemed to have been rejected. . . .” (Gov. Code, § 945.4.) “A claim relating to a cause of action for death or for injury to person or to personal property. . . shall be presented. . . not later than six months after the accrual of the cause of action.” (Gov. Code § 911.2(a).) If a claimant fails to make a claim within six months pursuant to Government Code section 911.2, the claimant may make a written application to the board of the public entity for permission to present a late claim within a reasonable time but not to exceed one year from the accrual of the cause of action. (Gov. Code § 911.4(a)-(b).) If the application to present a late claim is denied or deemed denied, the claimant may petition the Court for relief from the requirements of Government Code section 945.4. (Gov. Code § 946.6(a).)

A petition pursuant to Government Code section 946.6 must show each of the following: (1) that the late claim application made to the board was denied or deemed denied; (2) the reason for failure to present the claim within the time limit specified in section 911.2 (within six months of the accrual of the cause of action); and (3) the contents of the claim as required by Government Code section 910. (Gov. Code, § 946.6, subd. (b).)

“The court shall relieve the petitioner from the requirements of Section 945.4 if the court finds that the application to the board under Section 911.4 was made within a reasonable time not to exceed that specified in subdivision (b) of Section 911.4 and was denied or deemed denied pursuant to Section 911.6 and that one or more of the following is applicable: (1) The failure to present the claim was through mistake, inadvertence, surprise, or excusable neglect unless the public entity establishes that it would be prejudiced in the defense of the claim if the court relieves the petitioner from the requirements of Section 945.4. . . .” (Gov. Code, § 946.6, subd. (c).)

The petitioner bears the burden of proving by a preponderance of the evidence that the late-claim application was made within a reasonable time and that one of the statutory requirements under Government Code section 946.6(c) was met. (Drummond v. County of Fresno (1987) 193 Cal.App.3d 1406, 1410.) “The court shall make an independent determination upon the petition. The determination shall be made upon the basis of the petition, any affidavits in support of or in opposition to the petition, and any additional evidence received at the hearing on the petition.” (Gov. Code, § 946.6, subd. (e).) “If the court makes an order relieving the petitioner from Section 945.4, suit on the cause of action to which the claim relates shall be filed with the court within 30 days thereafter.” (Gov. Code, § 946.6, subd. (f).)

II. Analysis

A. Background

Plaintiff’s injury occurred on March 3, 2025. (See Compl.) On July 11, 2025, Plaintiff retained current counsel. (Ohanian Decl. ¶8.) On September 3, 2025, the time for presentation of a claim under Government Code Section 911.2 expired. “The late-claim application and proposed claim were mailed to the City on February 11, 2026 and treated by the City as presented on February 13, 2026.” (Mot. at p. 2:17-19.) On March 5, 2026, the City returned the claim as not presented within six months. (Ohanian Decl. ¶15.)

There is no dispute that Plaintiff’s presentation of the claim on February 13, 2026, is untimely. Instead, Plaintiff argues that this delay was the result of mistake, inadvertence, surprise, or excusable neglect and therefore, is entitled to relief pursuant to Government Code, section 946.6. In response, The City argues that the late-filed claim was the result of inexcusable neglect and was not brought within a reasonable time. Both arguments are grounded in The City’s belief that Plaintiff’s five-month delay in submitting a claim was not the result of mistake, inadvertence, surprise, or excusable neglect.

In his declaration, Plaintiff's counsel, Sark Ohanian, states that "[t]he failure to present the claim within six months was not intentional or strategic. It resulted from my firm's reasonable, good-faith mistake regarding ownership of the Subject Premises after the professional database search identified a private entity as the likely owner." (Ohanian Decl. ¶14.) Counsel states that in July 2025, "I investigated ownership of the Subject Premises and obtained a property-deed search through Accurant, a LexisNexis Risk Solutions database. The search identified MAYFAIR LOFTS, LLC, a private active California limited liability company, as the likely owner of the Subject Premises." (Ohanian Decl. ¶14.) "[U]pon conducting further research in February 2026 into the Subject Premises to try to determine the servicing company and/or operator of the elevators at the property that I learned from an online posting that the Subject Premises had been purchased by the City of Los Angeles in 2023 and was therefore subject to the Government Claims Act." (Ohanian Decl. ¶16.) In opposition, The City notes that its purchase of the subject property is common knowledge, discoverable through a simple Google search. (Zuckerman Decl. ¶13.)

B. Has the Plaintiff's Attorneys Adequately Demonstrated Mistake, Inadvertence, Surprise, or Excusable Neglect?

"Government Code section 946.6 is a remedial statute intended to provide relief from technical rules which otherwise provide a trap for the unwary. The remedial policy underlying the statute is that wherever possible cases should be heard on their merits. Thus, a denial of such relief by the trial court is examined more rigorously than where relief is granted and any doubts which may exist should be resolved in favor of the application." (Munoz v. State of California, supra, 33 Cal.App.4th at p. 1778.) "Excusable neglect has been defined as neglect that might have been the act or omission of a reasonably prudent person under the same or similar circumstances. Cases in which relief on the basis of excusable neglect is granted generally involve plaintiffs who have diligently acted within the claims-filing limitation period (i.e., six months) to retain counsel. Generally speaking, it is the neglectful conduct of counsel or counsel's staff, imputed to plaintiff, which is determined to be excusable and the neglectful conduct is deemed relatively minor." (Id. at p. 1782–1783.) Here, even with these liberal policies in mind, from the totality of evidence, it is unclear at this time, to this Court, whether Plaintiff's failure to file a timely claim was a result of excusable attorney neglect.

First, the failure to discover that The City owned the property during counsel's initial July 2025, search was unreasonable. The LexisNexis Risk Solutions report contains the following disclaimer: "The Public Records and commercially available data sources used on reports have errors. Data is sometimes entered poorly, processed incorrectly and is generally not free from defect. This system should not be relied upon as definitively accurate. Before relying on any data this system supplies, it should be independently verified." (Ohanian Decl. ¶9, Ex 2.) Plaintiff's counsel did not independently verify this information. A reasonably prudent person under the same or similar circumstances would not have relied solely on this information and therefore, the reliance on this information does not conclusively demonstrate excusable neglect.

In reply, Plaintiff argues that "Mr. Ohanian has run 500+ of these reports in his career, and it is his experience that the "Name Owner" listed on page 1 of these reports is the name of the current owner at the time of the running of the report." (Opp. at p. 3:11:13.) However, "[t]he law does not permit reason and common sense to lose their sway because, through ignorance, inattention or selfishness, an unreasonable practice prevails." (Haskins v. Southern Pac. Co. (1934) 3 Cal.App.2d 177, 184; see CACI No. 413, ["Following a custom or practice does not excuse conduct that is unreasonable."]) Just because Mr. Ohanian has successfully relied upon over five hundred of these reports does not make such reliance per se reasonable. Instead, it is apparent no reasonably prudent person would solely rely upon the LexisNexis Risk Solutions report for this purpose, especially when it is clear that "[t]his system should not be relied upon as definitively accurate." (Ohanian Decl. ¶9, Ex 2.) Relying on this report as the sole source of Plaintiff's information can fairly be considered to be unreasonable and inexcusable.

Second, Plaintiff's counsel then ignored this matter for over seven months. "Once retained, it is the responsibility of legal counsel to diligently pursue the pertinent facts of the cause of action to identify possible defendants." (Munoz v. State of California (1995) 33 Cal.App.4th 1767, 1779.) Plaintiff's counsel did not do so here. "A person seeking relief must show more than just failure to discover a fact until too late; or a simple failure to act. He must show by a preponderance of the evidence that in the use of reasonable diligence, he could not discover the fact or could not act upon it." (Department of Water & Power v. Superior Court (2000) 82 Cal.App.4th 1288, 1296.) Plaintiff's counsel has not demonstrated any reasonable diligence in the discovery of the subject property ownership. After the initial title search, Plaintiff's counsel ignored this action for seven months despite pertinent facts readily available through other means. "When there is a readily available source of information from which the potential liability of a government entity may be discovered, a failure to use that source is deemed inexcusable." (Id. at p. 1294.) As here, "[w]here the lateness of the claim is attributable to the failure of the claimant or his counsel to conduct a reasonably prudent investigation of the circumstances of the accident, relief from the claims' filing

statute is not available.” (Id. at p. 1296.)

In reply, Plaintiff argues that “Mr. Zuckerman’s declaration and the referenced exhibit thereto do not provide any information or put forth any evidence as to what a Google search would have revealed to Plaintiff’s counsel in July 2025. As such, it is not proper or fair to Plaintiff to deny this petition on an assumption that a Google search by her counsel would have confirmed the true identity of the owner of the Subject Property.” (Reply at p. 4:10-15.) However, the information contained within was available in June 2025. The page clearly identifies sources of information, such as a Los Angeles Times article, in print before June 2025.

Additionally, Plaintiff does not argue that reasonably available alternate sources would not have returned the City as the true owner anytime between June 2025 and February 2026. It appears undisputed that the City’s purchase of the property was publicly available information. Instead, Plaintiff’s counsel sat on this claim for seven months without any action, let alone the reasonable diligence counsel was required to undertake to pursue the pertinent facts or identify possible defendants. This, once again, can be deemed to be inexcusable.

In the end, counsel’s neglect is not relatively minor, nor perhaps would a reasonably prudent attorney make the same decisions under the circumstances. While the Court acknowledges that doubts should be resolved in favor of the application of relief “[t]he general policy favoring trial on the merits cannot be applied indiscriminately so as to render ineffective the statutory time limits.” (Department of Water & Power v. Superior Court, supra, 82 Cal.App.4th 1288 at p. 1293.) Here, the totality of the evidence demonstrates Plaintiff’s counsel failed to exercise a reasonably prudent investigation and effectively disregarded the action for an extended period. Counsel was certainly neglectful in the handling of this matter. (See e.g. Garcia v. Hejmadi (1997) 58 Cal.App.4th 674, 682 [“Conduct falling below the professional standard of care . . . is not therefore excusable. To hold otherwise would be to eliminate the express statutory requirement of excusability and effectively eviscerate the concept of attorney malpractice.”]) [FN 1]

On the other hand, the City has made no attempt to demonstrate any actual prejudice, which would result in the automatic denial of this motion. Moreover, the law generally favors resolution of cases to be on the merits.

When all is said and done, the critical issue is whether Plaintiff’s lawyers’ actions were “excusable” neglect or not.

This Court will hear further argument at tomorrow’s hearing on that critical issue.

Dated: September 23, 2026 _____

Randolph M. Hammock

Judge of the Superior Court

FN 1- To be clear: This is not a situation involving mandatory relief under Code of Civil Procedure, section 473(b). However, even if it were so, the neglect of counsel would still have to be “excusable.” If this were subject to mandatory relief, then every statute of limitations defense could possibly be voided if the lawyer negligently filed the case after the expiration of same. That would essentially create an exception that swallowed the rule.